

		109 Cal.App.4th 739, 760 [“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”).] Plaintiff shall separately file and serve the proposed Second Amended Complaint within 30 days of this ruling. Separate filing of the proposed Second Amended Complaint is required to ensure it is properly indexed in the Court’s electronic filing system. The Case Management Conference is CONTINUED to Friday, October 16, 2026, at 9:30 a.m. in Department C12. (Demurrer scheduled that date). Plaintiff shall provide notice.
9.	Murphy vs. Fox 26-01542023	1. Demurrer to Complaint 2. Case Management Conference Defendant The Regents of the University of California, erroneously sued and served as University of California Irvine Medical Center, d/b/a UCI Health’s demurrer to plaintiff Loretta Murphy’s 2nd cause of action for institutional negligence is OVERRULED. (Code Civ. Proc., § 430.10, subd. (e).) The 2nd cause of action states sufficient facts, regardless of its title. (<i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 38 [“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer”]; <i>Williams v. Beechnut Nutrition Corp.</i> (1986) 185 Cal.App.3d 135, 139, FN 1 [failure to properly label or title a cause of action is not determinative]; <i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917 [negligence elements]; <i>Hanson v. Grode</i> (1999) 76 Cal.App.4th 601, 606 [professional negligence elements]; <i>Leung v. Verdugo Hills Hospital</i> (2012) 55 Cal.4th 291, 310 [institutional negligence]; Complaint, ¶¶ 2, 6, 36 [duty], 16-21, 30, 37 [breach], 22-28 [proximately caused damages], 35 [incorporating prior allegations].) Moving defendant shall file an Answer to the Complaint within 30 days. The Case Management Conference is CONTINUED to November 19, 2026, at 9:30 a.m. in Department C12. Plaintiff shall give notice.